

Employee Adjustment Act, 2019

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Employee Adjustment Act, 2075 (2018)

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An Act Made to Provide for Employee Adjustment

Preamble: Whereas, it is expedient to make legal provisions regarding the adjustment of employees of government service and other services into the service of the Federation, Province and Local Level,

The Federal Parliament has enacted this Act. 1. Short Title and Commencement: (1) This Act may be called the "Employee Adjustment Act, 2075 (2018)".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Employee of other service" means an employee who has obtained permanent appointment from the former local bodies and is working at the local level at the time of commencement of the Employee Adjustment Ordinance, 2075 (2018), or a permanent employee of a committee, commission, corporation or similar organized institution whose service has been transferred to a province or local level.

(b) "Employee" means a permanent employee of government service and other service who is in service at the time of commencement of this Act.

(c) "Ministry" means the Ministry of Federal Affairs and General Administration of the Government of Nepal.

(d) "National Records Office" means the body maintaining records of civil servants.

(e) "Adjustment" means the act of posting an employee to a post in the service of the Federation, Province or Local Level pursuant to this Act.

(f) "Committee" means the Organization and Management Survey Committee referred to in subsection (2) of Section 3.

(g) "Government service" means the services established pursuant to the Civil Service Act, 2049 (1993), the Nepal Health Service Act, 2053 (1997) and the Act Relating to Legislature-Parliament Secretariat, 2064 (2008).

(h) "Constitution" means the Constitution of Nepal.

(i) "Service operating body" means the ministry or body that operates a service, group or sub-group pursuant to the prevailing law.

(j) "Local level" means a Rural Municipality or a Municipality. 3.

Approval of Organization and Employee Posts: (1) For the purpose of adjusting employees pursuant to this Act, the organizational structure and employee posts required for service delivery in the Federation, Province and Local Level shall be as approved by the Government of Nepal. (2) To make recommendations for the approval of the organizational structure and employee posts pursuant to subsection (1), there shall be an Organization and Management Survey Committee in the Ministry as follows:- (a) Secretary, Ministry - Coordinator : : (b) Joint Secretary, Office of the Prime Minister and Council of Ministers - Member (c) Joint Secretary, Government of Nepal, Ministry of Finance - Member (d) Joint Secretary, Government of Nepal, Ministry of Law, Justice and Parliamentary Affairs - Member (e) Joint Secretary, Government of Nepal, concerned Ministry - Member (f) Joint Secretary, Ministry - Member-Secretary (3) The meetings of the Committee and its procedures shall be as determined by the Committee itself. (4) The Committee shall review the organizational structure and employee posts of the Federation, Province and Local Level approved by the Government of Nepal, based on the list of rights according to the Constitution, nature of work and workload, and if a situation requiring review is found, it shall review and recommend to the Ministry. (5) Where the Committee reviews the organizational structure and employee posts of Province and Local Level pursuant to subsection (4), it shall make a recommendation ensuring that level-wise posts are maintained. (6) Based on the recommendation made by the Committee pursuant to subsections (4) and (5), the Ministry shall submit to the Government of Nepal for the approval of the organizational structure and employee posts of the Federation, Province and Local Level. (7) While reviewing the organizational structure and employee posts of a Province or Local Level, the Committee may invite the Chief Secretary of the Province. (8) Notwithstanding anything contained in subsection (6), if the organizational structure and posts existing at the time of commencement of this Act are not altered during the review pursuant to subsection (4), it shall not be necessary to submit to the Government of Nepal. (9) The Committee may, as required, invite any person or form a sub-committee to assist in its work. (10) After the work of employee adjustment is completed, the Provincial Government or Local Level may, as required, increase, decrease, change or modify the organizational structure or posts.

If a request is made by the concerned Province or Local Level, the Government of Nepal shall provide necessary assistance.

(11) After the work of employee adjustment is completed, the Government of Nepal shall review the organizational structure and posts of the bodies under the Federation based on the list of rights mentioned in the Schedule to the Constitution, nature of work and workload. 4. Details of Employees: (1) For the purpose of adjusting employees of government service, the details of employees maintained in the National Records Office shall be taken as the basis.

(2) In the case of employees holding permanent appointments from former local bodies and being in service, the details prepared by the concerned District Coordination Committee and sent to the Ministry shall be taken as the basis.

(3) In the case of permanent employees of committees, commissions, corporations or similar organized institutions whose service has been transferred to a Province or Local Level, the details prepared by the concerned Ministry and sent to the Ministry shall be taken as the basis.

(4) Notwithstanding anything contained in subsections (2) and (3), the details received from the concerned body in the Ministry and the details collected by the Ministry through various means may also be taken as the basis for the purpose of employee adjustment. 5.

Publication of Notice: (1) For the purpose of adjusting employees of government service to posts in the

Federation, Province and Local Level, the Ministry shall publish a notice calling for applications from employees, specifying the details of the service, group's post and level to be adjusted. (2) For the purpose of adjusting employees of other services whose service has been transferred to a Province or Local Level to posts in the Local Level, the Ministry shall publish a notice calling for applications from employees, specifying the details of the Local Level, service, post and level to be adjusted. (3) For the purpose of adjusting an employee who has obtained permanent appointment in the service of the former District Development Committee and is working in a District Coordination Committee or any Local Level at the time of commencement of the Employee Adjustment Ordinance, 2075 (2018), to a post in a Local Level within the concerned district, the Ministry shall publish a notice calling for applications from employees, specifying the details of the Local Level, service, post and level to be adjusted. (4) When calling for applications pursuant to subsections (1), (2) and (3), the details, including the service, group, sub-group of the Federation to be adjusted, the number of posts and grade or level under it, the service, group, sub-group of each Province, the number of posts and level under it, and the service, group of Local Level of each district, the number of posts and level under it, shall be published on the website of the Ministry. (5) An employee of government service shall, within the period specified in the notice published pursuant to subsection (1), submit an application to the service operating body indicating the priority order of the Federation, Province and Local Level where he/she wishes to be adjusted. (6) An employee of other service whose service has been transferred to a Province or Local Level shall, within the period specified in the notice published pursuant to subsection (2), submit an application to the Ministry indicating the priority order of the Local Level where he/she wishes to be adjusted. (7) An employee who has obtained permanent appointment in the service of the former District Development Committee and is working in a District Coordination Committee or any Local Level at the time of commencement of the Employee Adjustment Ordinance, 2075 (2018) shall, within the period specified in the notice published pursuant to subsection (3), submit an application to the Ministry indicating the priority order of the Local Level where he/she wishes to be adjusted. (8) Notwithstanding anything contained in subsection (7), an employee who has obtained permanent appointment from a former local body and has been adjusted pursuant to the Local Government Operation Act, 2074 (2018) shall not be required to submit an application pursuant to this section. (9) While submitting an application pursuant to subsections (5), (6) and (7), in the case of service of Federation and Province, an application for adjustment shall be made to the service, group or sub-group related to the post in which he/she is working, and in the case of service of Local Level, to the service or group related to the post in which he/she is working. (10) Based on the applications received pursuant to subsections (5), (6) and (7), the concerned Ministry shall prepare the details of employees to be adjusted pursuant to this section. (11) The format of the application, the procedure and the matters to be mentioned in the application, which are required to be submitted pursuant to this section, shall be as determined by the Ministry. (12) Notwithstanding anything contained elsewhere in this section, the mere fact that an application has not been submitted pursuant to this section or the details required to be mentioned in the application have not been mentioned shall not prevent the adjustment of any employee.

6. Adjustment of Employees of Other Service: (1) Based on the applications received according to the notice published pursuant to subsection (2) of Section 5, the employees mentioned in that subsection shall be adjusted by the Ministry in the organizational structure and posts approved for the Local Level pursuant to Section 3, based on the grounds mentioned in Section 8, to the matching service, group and level of the Local Level on the basis of the post currently held and educational qualification.

(2) Based on the applications received according to the notice published pursuant to subsection (3) of Section 5, the employees mentioned in that subsection shall be adjusted by the Ministry in the organizational structure and posts approved for the Local Level pursuant to Section 3, based on the grounds mentioned in

Section 8, to the Local Level, service, group and level within the concerned district. Provided that, if adjustment cannot be made because there is no post matching the service, group or level of the employee in any Local Level within the concerned district, adjustment may be made to a post in the service of a Local Level of another district within the concerned Province.

(3) When adjusting permanent employees of commissions, committees, corporations or similar organized institutions whose service has been transferred to a Province or Local Level, the adjustment shall be made to the matching service, group and level of the Local Level on the basis of the post currently held and educational qualification.

(4) The concerned Local Level shall, within ten days from the date of commencement of this Act, issue a letter of adjustment to the employee who has obtained permanent appointment from a former local body and has been adjusted pursuant to the Local Government Operation Act, 2074 (2018) but is yet to receive the adjustment letter, and shall inform the Ministry accordingly.

(5) Other procedures for adjustment made pursuant to this section shall be as determined by the Ministry. 7.

Adjustment of Employees of Government Service: (1) Based on the organizational structure and posts pursuant to Section 3 and the applications received according to the notice published pursuant to Section 5, the service operating body shall, on the grounds mentioned in Section 8, adjust employees to the service of the Federation, Province and Local Level in the organizational structure and posts of the Federation, Province and Local Level. (2) When adjusting pursuant to subsection (1), adjustment shall be made as follows:- (a) When adjusting to the service of the Federation, to the post of the concerned service, group, sub-group, grade or level, (b) When adjusting to the service of the Province, to the level maintained pursuant to subsection (4) of the concerned service, group, sub-group, and (c) When adjusting to the service of the Local Level, to the level maintained pursuant to subsection (4) of the concerned service, group. (3) Notwithstanding anything contained in subsection (2), in the case of a permanent employee who was appointed to government service before the commencement of the Employee Adjustment Ordinance, 2075 (2018), but whose post was not included when the organizational structure and posts were approved pursuant to Section 3, if he/she fulfills the minimum educational qualification prescribed for the post of the concerned service, group, the Ministry may, upon the recommendation of the service operating body and in accordance with the decision of the Directive and Coordination Committee pursuant to Section 17, adjust such employee to any post of a service or group matching his/her educational qualification in the service of the Province or Local Level. (4) When adjusting employees working in a graded system in government service to the Province or Local Level pursuant to sub-sections (2) and (3), adjustment shall be made based on the employee's service period and educational qualification, with level matching and grade (salary increment) as follows:-

Current Grade	Service Period	Educational Qualification	Level for Adjustment
Gazetted Unclassified Second	Service period less than five years	Assistant Level Fourth Tier Two additional grades on what is being received	Gazetted Unclassified Second
Assistant Level Fourth Tier Two	Service period of five years or more	Assistant Level Fifth Tier -	Gazetted Unclassified First
Assistant Level Fifth Tier -	Service period less than five years	Assistant Level Fifth Tier Two additional grades on what is being received	Gazetted Unclassified First
Assistant Level Fifth Tier Two	Service period of five years or more and has obtained the minimum educational qualification prescribed at the time of entry into the	Gazetted Unclassified First grade	Officer Level Sixth Tier -
Gazetted Unclassified First	Service period less than five years	Officer Level Seventh Tier Two additional grades on what is being received	Gazetted Third
Gazetted Third	Service period of five years or more	Officer Level Eighth Tier -	Gazetted Second
Gazetted Second	Service period less than five years	Officer Level Ninth Tier Two additional grades on what is being received	Gazetted Second
Gazetted Second	Service period of five years or more	Officer Level Tenth Tier -	Gazetted First

Officer Level Eleventh Tier Two additional grades on what is being received (5) When adjusting grade-less employees to the service of the Province or Local Level, adjustment shall be made by adding two grades to the grade he/she is currently receiving. (6) If the salary applicable when adjusting an employee pursuant to this section becomes less than the salary he/she was receiving previously, salary shall be matched by adding grades. (7) Notwithstanding anything contained in the prevailing law, if the grade added when adjusting to the service of the Province or Local Level pursuant to subsections (4) and (5) exceeds the maximum grade that such employee is entitled to receive, the grade so added shall also be provided. (8) Notwithstanding anything contained in subsection (4), when an employee working in a level-based system in government service is to be adjusted to the Province or Local Level, adjustment shall be made to the relevant level of the service of the Province or Local Level.

For employees adjusted in this manner, two grades shall be added to the grade he/she is currently receiving. The provisions of subsections (6) and (7) shall also apply in the case of such employees.

(9) When adjusting employees of government service to the service of the Federation, Province and Local Level pursuant to this section, the Government of Nepal shall adjust posts of Gazetted First Class or equivalent and above, and the concerned service operating body shall adjust other posts.

(10) Notwithstanding anything contained elsewhere in this Act, employees of the Nepal Legislature-Parliament Service established pursuant to the Act Relating to Legislature-Parliament Secretariat, 2064 (2008) shall be adjusted to the Federation, Province and Local Level.

(11) The Federal Parliament Secretariat shall send the details of employees to be adjusted pursuant to subsection (10) to the Ministry within seven days of the commencement of this Act, and the Ministry shall make adjustments within seven days of receiving such details. While making adjustments in this manner, subject to Section 8 of this Act, employees of the General Administration Group of the Nepal Legislature-Parliament Service shall be adjusted to posts in the Administration Service, General Administration Group of the Provincial Civil Service or the Administration Service, General Administration Group of the Local Service, and employees of other groups shall be adjusted to matching groups.

(12) The transfer, promotion, and seniority calculation of employees adjusted pursuant to subsection (11) shall be the same as those of employees of government service adjusted pursuant to this Act. 8.

Basis for Employee Adjustment: (1) When adjusting employees of government service to posts of the Federation pursuant to this Act, the adjustment shall be made successively on the following basis according to the priority order mentioned in the application submitted by the employee pursuant to subsection (5) of Section 5:- (a) Seniority in the working post, (b) Seniority in a post of a lower grade or level than the working post, (c) Seniority in age. (2) When adjusting employees of government service to posts of the Province or Local Level pursuant to this Act, the adjustment shall be made successively on the following basis according to the priority order mentioned in the application submitted by the employee pursuant to subsection (5) of Section 5:- (a) Seniority in the working post, (b) Seniority in a post of a lower grade or level than the working post, (c) The Province or Local Level where the employee is currently working, (d) Address of current permanent residence, (e) Address mentioned in the citizenship certificate, (f) Seniority in age. (3) When adjusting employees to the service of the Province or Local Level pursuant to subsection (2), husband and wife shall, as far as possible, be adjusted to fall within the same district. (4) Notwithstanding anything contained in subsection (1) or (2), an employee certified by a Medical Board constituted by the Government of Nepal as having a severe disease or serious physical disability as determined by the prevailing law shall be adjusted by the service operating body, upon the recommendation of the Directive and Coordination

Committee pursuant to Section 17, as deemed appropriate. (5) Notwithstanding anything contained in this section, employees of government service who are due to retire compulsorily within one year from the date of publication of the notice pursuant to Section 5 shall not be adjusted to the service of the Province or Local Level. (6) Notwithstanding anything contained in subsection (5), employees of bodies or offices whose functions, along with organizational structure, have been transferred to the Province or Local Level shall not be deemed to be prevented from being adjusted to the service of the concerned Province or Local Level. (7) An employee who is adjusted to a post in the service of the Federation pursuant to this section and is currently working in an office or post of the Federation at the time of adjustment shall continue to work in the office where he/she is currently posted until he/she is transferred or posted according to the law relating to his/her service and conditions.

In the case of an employee adjusted to a post in the service of the Federation who was assigned to the Province or Local Level at the time of adjustment, he/she shall be assigned to an office of the Federation for work. 9. Employees May be Deputed: (1) If, even after adjustment pursuant to Sections 6 and 7, the posts approved for the service of the Province or Local Level pursuant to Section 3 remain unfilled and vacant, an employee from the pool establishment maintained pursuant to subsection (1) of Section 19, of the concerned service or group, shall be deputed through the Provincial Government for work for a maximum period of three years to a post pursuant to Section 7 of a level matching the post he/she currently holds.

(2) When deputing employees pursuant to subsection (1), the Government of Nepal shall depute employees of Gazetted First Class or Eleventh Tier or above, and the service operating body shall depute other employees.

(3) An employee deputed to the service of the Province or Local Level pursuant to this section may be deputed by the Provincial Government from one office to another within the Province to a vacant post matching his/her service, group, sub-group and level.

(4) An employee deputed to the service of the Province or Local Level pursuant to this Act shall be accountable to the level to which he/she is deputed as long as he/she is working in such level.

(5) An employee deputed pursuant to this section shall be eligible for promotion to a post in the service of the Province or Local Level to which he/she is deputed.

(6) If an employee referred to in subsection (5) is promoted to the service of the concerned Province or Local Level, he/she shall be deemed to be automatically adjusted to the post in the service of such Province or Local Level.

(7) The post of an employee deputed pursuant to this section shall be deemed vacant in any of the following circumstances, and for the fulfillment of such vacant post, the concerned Province or Local Level shall send a request for fulfillment of the post to the Provincial Public Service Commission:-

(a) If he/she resigns,

(b) If he/she is transferred or promoted to a post in the service of the Federation,

(c) If he/she is promoted to the service of the concerned Province or Local Level, or

(d) If he/she dies.

(8) Notwithstanding anything contained in subsection (7), until the Provincial Public Service Commission is formed, a request for fulfillment of the post shall be sent to the Public Service Commission through the

Ministry.

(9) An employee adjusted to a post in the service of the Federation pursuant to this Act may be deputed to work in the Province or Local Level based on the demand of the concerned Province or Local Level.

10. Assignment for Work: (1) Until a law is made pursuant to subsection (3) of Section 84 of the Local Government Operation Act, 2074 (2018), the Government of Nepal shall assign an officer of the civil service to the post of District Coordination Officer and Chief Administrative Officer of Rural Municipality and Municipality.

(2) An employee assigned pursuant to subsection (1) shall be accountable to the concerned Local Level. 11. Provisions Regarding Chief Secretary of Province and Secretary of Provincial Ministry: (1) For the purpose of adjusting employees pursuant to this Act, the post of Chief Secretary of the Provincial Government and Secretary of a Ministry of the Provincial Government shall be deemed to be posts of the Federal Civil Service.

(2) The Government of Nepal shall, pursuant to the prevailing law, assign employees from the civil service to the posts of Chief Secretary of the Province and Secretary of the Provincial Ministry.

(3) Notwithstanding anything contained in subsections (1) and (2), after the post of Provincial Secretary is filled pursuant to Provincial law, such post shall be deemed to be a post of the Provincial Civil Service automatically.

(4) When assigning to the post of Chief Secretary of the Province pursuant to subsection (2), the assignment shall be made from among the employees of the Gazetted Special Class, and when assigning to the post of Secretary of the Provincial Ministry, the assignment shall be made from among the employees of the Gazetted First Class of the concerned service, group or sub-group, as far as possible on the basis of seniority and work efficiency.

(5) An employee assigned pursuant to subsection (2) shall be fully accountable to the Provincial Government.

12. Demand for Fulfillment of Posts: (1) If, even after adjustment pursuant to Sections 6 and 7, the posts created pursuant to Section 3 for the service of the Province or Local Level cannot be filled, the concerned Province or Local Level shall send a request for fulfillment of posts to the Provincial Public Service Commission. Provided that, until the Provincial Public Service Commission is formed, the concerned Province or Local Level shall send a request to the Public Service Commission through the Ministry.

(2) Upon receipt of a request pursuant to subsection (1) or subsection (7) or (8) of Section 9, the Provincial Public Service Commission or the Public Service Commission shall recommend candidates for the fulfillment of posts pursuant to the law of the concerned Province or Local Level.

Provided that, until the law relating to the service of the concerned Province or Local Level is made, posts shall be filled by determining the number of posts pursuant to the provisions of the prevailing law relating to civil service. While filling posts in this manner, for the posts determined for promotion, the posts shall be filled from potential candidates one grade or level below in the service of the concerned Province or Local Level who have the required minimum qualification for the post to be promoted.

(3) Upon receipt of a request pursuant to subsection (2), the Provincial Public Service Commission or the Public Service Commission shall publish an advertisement specifying the Province or Local Level where the post is vacant, and shall recommend suitable candidates for appointment to the concerned Province or Local Level. The concerned Province or Local Level shall appoint the employee so recommended.

(4) Notwithstanding anything contained elsewhere in this section, if an employee adjusted to the service of the Province or Local Level ceases to be in service for any reason, the post shall be filled by determining the number of posts pursuant to the law relating to the service of the concerned Province or Local Level.

(5) Notwithstanding anything contained elsewhere in this section, until the Provincial Public Service Commission is formed, the Government of Nepal may request the Public Service Commission to recommend for the fulfillment of posts by projecting the number of posts for employees to be adjusted in the organizational structure and posts of the Province and Local Level approved pursuant to Section 3 and the number of posts that cannot be filled from adjustment, and opening the vacant posts of the Province and Local Level.

(6) Upon receipt of a request pursuant to subsection (5), the Public Service Commission shall carry out the proceedings related to the fulfillment of such posts and recommend to the concerned Province or Local Level for appointment, and the concerned Province or Local Level shall appoint such employee.

(7) An employee appointed pursuant to subsection (3) or (6) shall be deemed to be appointed to a post in the service of the concerned Province or Local Level. 13.

Employee Must Report for Duty: (1) An employee adjusted pursuant to this Act must mandatorily report for duty to the post in the service of the Province or Local Level to which he/she has been adjusted within twenty-one days, excluding travel time. (2) Notwithstanding anything contained in subsection (1), an employee who is in the following situation at the time of adjustment shall report for duty to the post to which he/she has been adjusted within thirty-five days of the expiry of the following period:- (a) An employee on maternity leave or maternity care leave, after the expiry of such leave, (b) An employee on mourning leave, after the expiry of such leave, (c) An employee under suspension, after the expiry of such suspension, (d) An employee on extraordinary or study leave, after the expiry of such leave, (e) An employee hospitalized due to illness, after being discharged from the hospital. (3) Notwithstanding anything contained in the prevailing law, an employee who fails to report for duty within the period specified in subsection (1) or (2) shall be retired from service by the authority empowered to issue a departmental punishment order under the prevailing law. (4) Before retiring an employee from service pursuant to subsection (3), a reasonable opportunity shall be given to submit a defense and explanation pursuant to the prevailing law. (5) The Public Service Commission shall be consulted on the matter of retiring an employee from service pursuant to subsection (3). (6) An employee retired pursuant to subsection (3) shall be entitled to the benefits under the prevailing law. (7) The administrative chief or officer of the concerned body shall have the employee adjusted to the Province or Local Level pursuant to this Act report for duty and assign responsibility. (8) An officer who fails to make the employee report for duty and assign responsibility pursuant to subsection (7) shall be actioned as per the prevailing law. 14.

Provisions Regarding Transfer and Promotion of Adjusted Employees: (1) Notwithstanding anything contained in the prevailing law, an employee adjusted to the service of a Province pursuant to this Act may be transferred within the concerned Province or its subordinate offices after the completion of the period specified in the Provincial law. (2) Notwithstanding anything contained in the prevailing law, an employee adjusted pursuant to this Act may be a candidate for promotion to the following posts:- (a) An employee adjusted to the service of a Local Level, to a post one level above in the concerned service or group of the Local Level located in the concerned Province, (b) An employee adjusted to the service of a Province, to a post one level above in the service, group or sub-group of the concerned Province. (3) For the purpose of subsection (2), in the case of an adjusted employee, his/her service period prior to adjustment shall also be

counted. (4) An employee adjusted to a Province or Local Level pursuant to this Act may be a candidate for promotion to a post one grade or level above in the service, group or sub-group in which he/she was serving prior to adjustment, for promotion by internal competition, seniority and performance evaluation and efficiency evaluation pursuant to the Federal Civil Service Act. 15.

Standards Regarding Service Terms and Security: (1) While making a law relating to the formation of the service of a Province or Local Level, the Province or Local Level shall make the following provisions:- (a) While making laws relating to Provincial Civil Service and Local Service, take as a basis the fundamental principles and norms of the Federal Civil Service law regarding employee selection, recruitment, appointment, transfer, promotion, conduct and departmental punishment, (b) Make provision for appointment to posts in the Provincial Civil Service and Local Service upon the recommendation of the Provincial Public Service Commission, (c) Approve the organizational structure and posts in such a way that the post held at the time of adjustment remains until the employee adjusted to the service of the Province or Local Level retires, (d) Ensure that the salary received pursuant to law at the time of adjustment is not less than what was being received, (e) Ensure that an employee adjusted to the service of a Province is a potential candidate for promotion to a post in the concerned service or group in the concerned Province and its subordinate offices, (f) Make provision allowing employees adjusted to the service of a Local Level to be transferred to Local Levels within the concerned Province pursuant to law, (g) Provide an opportunity for promotion to a post in the service of the Province or Local Level through inter-service competition for employees adjusted to the service of the Province or Local Level pursuant to this Act, (h) Ensure that an employee deputed pursuant to Section 9 becomes a potential candidate for promotion to a post in the concerned Province and Local Service, (i) Make provision for providing a contributory retirement benefit in the case of an employee appointed pursuant to subsection (3) or (6) of Section 12. (2) Notwithstanding anything contained elsewhere in this Act, until a law relating to the service, terms and facilities of employees of the Federation, Province and Local Level is made, the provisions relating to the service, terms and facilities of an employee adjusted pursuant to this Act shall be according to the service terms and facilities existing prior to adjustment. (3) No law shall be made that adversely affects the service terms of an employee adjusted pursuant to Sections 6 and 7, regarding salary, gratuity, pension, medical expenses and other facilities as per the law in force at the time of adjustment. (4) An employee adjusted from government service to the service of a Province or Local Level pursuant to this Act shall be provided with an opportunity for promotion through inter-service competition to a post in the Federal Civil Service as provided for in the Federal Civil Service law. (5) Opportunities such as studies, training, seminars, workshops under foreign scholarships received by the Government of Nepal shall be provided to employees adjusted to the service of the Province and Local Level pursuant to this Act, based on necessity and justification.

16. Service and Facilities of Adjusted and Deputed Employees: (1) The salary and other facilities of an employee adjusted or deputed to the service of a Province or Local Level pursuant to this Act shall be provided by the concerned Province or Local Level.

(2) Notwithstanding anything contained in subsection (1), if a government employee adjusted or deputed to the service of a Province or Local Level pursuant to this Act is separated from service for any reason, the Government of Nepal shall bear the gratuity, pension, medical expenses, and accumulated leave amount receivable by him/her. While providing such amount, it shall be provided in a manner not less or more than the facility receivable by an employee of a similar grade or level in the Federal Civil Service. Provided that, an employee dismissed from service resulting in being declared unfit for government service in the future shall not be entitled to any facility pursuant to this subsection.

(3) The provision regarding the facilities receivable by an employee adjusted from other service to the service of a Province or Local Level pursuant to this Act upon retirement shall be as per the law of the concerned level. While making such law, arrangements shall be made so that the facilities under the law in force at the time of appointment of such employee are not adversely affected. 17. Directive and Coordination Committee: (1) For the purpose of monitoring the work related to employee adjustment, coordinating between bodies and giving directives as required, there shall be a Directive and Coordination Committee as follows:-

(a) Minister for Federal Affairs and General Administration - Coordinator

:::

(b) Chief Secretary, Government of Nepal - Member

(c) Secretary, Service operating body - Member

(d) Administration expert designated by the Ministry - Member

(e) Secretary, Ministry - Member-Secretary

(2) The Directive and Coordination Committee referred to in subsection (1) shall determine the basis and criteria for adjusting employees referred to in subsection (3) of Section 7 to a matching service group.

(3) The meetings of the Directive and Coordination Committee referred to in subsection (1) and its related procedures shall be as determined by the Committee itself. 18.

Facilitation Committee: (1) For the purpose of facilitating the work related to employee adjustment, there shall be a Facilitation Committee as follows:- (a) Chief Secretary, Government of Nepal - Coordinator : : : (b) Secretary, Office of the Prime Minister and Council of Ministers - Member (c) Secretary, Ministry - Member (d) Secretary, Ministry of Finance - Member (e) Secretary, Ministry of Law, Justice and Parliamentary Affairs - Member (f) Secretary, Service operating body - Member (g) Joint Secretary, Ministry - Member-Secretary (2) The meetings of the Facilitation Committee referred to in subsection (1) and its related procedures shall be as determined by the Committee itself. 19. Provision Regarding Pool Establishment: (1) Employees of government service remaining after adjustment pursuant to Section 7 shall be deemed to be automatically placed in the pool establishment of the service operating body. Except in cases where employees so placed in the pool establishment are assigned for work elsewhere, the concerned service operating body shall have them report for duty. (2) The service operating body shall, as soon as possible, provide details of employees in the pool establishment pursuant to subsection (1) and the posts of such employees, specifying grade or level wise, to the Ministry and the National Records Office. Based on the details so received, the National Records Office shall update the records. (3) If an employee in the pool establishment pursuant to subsection (1) is promoted to a higher post or ceases to be in service for any reason, such post shall be automatically abolished, and accordingly, the service operating body and the National Records Office shall update the records. (4) An employee in the pool establishment of the government service pursuant to this section may, subject to the law relating to his/her service conditions, become a potential candidate for promotion to a higher post in the concerned service, group or sub-group of the Federation. 20. Deemed Adjustment to the Service of the Concerned Level: (1) An employee adjusted to the Federation pursuant to this Act shall be deemed to be adjusted to a post in the concerned service, group or sub-group of the Federation. (2) An employee adjusted to the service of a Province pursuant to this Act shall be deemed to be adjusted to the concerned Provincial